

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 943

Introduced by Dorn, 30.

Read first time January 09, 2026

Committee:

- 1 A BILL FOR AN ACT relating to public or private nuisances; to define
- 2 terms; to provide immunity from claims of public or private nuisance
- 3 for motor vehicle racing facilities as prescribed.
- 4 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** (1) For purposes of this section:

2 (a) Associated amenities includes any racetrack, garage, pit,
3 spectator seating, concession facility, restroom facility, administrative
4 office, maintenance facility, parking area, and driveway;

5 (b) Motor vehicle means any vehicle that is propelled by any power
6 other than muscular power;

7 (c) Motor vehicle racing facility means a facility and associated
8 amenities where one or more motor vehicles are used in any land-based
9 racing competition or in practice for any land-based racing competition;
10 and

11 (d) Racetrack includes any track that is paved or unpaved and any
12 oval track, road course, and drag strip.

13 (2) A motor vehicle racing facility shall not be found to be a
14 public or private nuisance if:

15 (a) The facility existed before a change in the land use or
16 occupancy of land in and about the locality of such facility; and

17 (b) Before such change, the facility would not have been a nuisance.

18 (3) A civil action against a motor vehicle racing facility for
19 public or private nuisance shall not be brought more than two years after
20 the condition that is the subject matter of the action reaches a level of
21 offense sufficient to sustain a claim of nuisance.

22 (4) This section shall not apply to any action brought to determine
23 compliance with or to enforce a previous order of a court related to the
24 same claim of nuisance or to any claims for additional damages or
25 equitable relief available when a motor vehicle racing facility fails to
26 remediate a nuisance pursuant to such court order.